# Raj Petro Specialities Pvt. Ltd., Manali

**73/1B, Vaikkadu Village**
**Chennai - 600103**
**Tamil Nadu, India**
(CIN.No:U23201MH1997PTC107800)

## Domestic Purchase Order

SECURITY SOFTWARE & SOLUTIONS LLP
601,602,PARASNATH TOWER,
GHATKOPAR EAST,MUMBAI#400077
India

Vendor No. : 1501703
GST Number : 27ADPFS4909Q1Z2
PAN Number : ADPFS4909Q
Kind Attention :
Your Reference :

PO No : 4500021284
Date : 03.07.2021
GST No : 33AACCS4923P2Z1
PAN No : AACCS4923P
Terms of delivery : Door Delivery
Terms of payment : 30 days Credit from Invoice date

| Item | Material/Description | HSN Code | Del. Date | Qty | UOM | Unit Price | Net Amount |
|---|---|---|---|---|---|---|---|
| 1 | CQR-ULTRA-1-30<br>Lubritek Ultramile 1 Kg<br>Rs.30 | 4821 | 30.06.2021 | 10,000 | NOS | 1.05 INR/NOS | 10,500.00 |
| | **Scheduled Delivery Date** 30.06.2021 | | **Delivery Quantity** 10,000.000 | | | | |
| | IGST 18.00% | | | | | | 1890.00 |
| | CQR-ULTRA-1-30Lubritek Ultramile 1 | | | | | | |
| | **Total** | | | | | | **12,390.00** |
| 2 | CQR-ULTRA-3-50<br>Lubritek Ultramile 3 Kg<br>Rs.50 | 4821 | 30.06.2021 | 1,000 | NOS | 1.05 INR/NOS | 1,050.00 |
| | **Scheduled Delivery Date** 30.06.2021 | | **Delivery Quantity** 1,000.000 | | | | |
| | IGST 18.00% | | | | | | 189.00 |
| | **Total** | | | | | | **1,239.00** |
| 3 | CQR-ULTRA-5-100<br>Lubritek Ultramile 5 Kg<br>Rs.100 | 4821 | 30.06.2021 | 500 | NOS | 1.05 INR/NOS | 525.00 |
| | **Scheduled Delivery Date** 30.06.2021 | | **Delivery Quantity** 500.000 | | | | |
| | IGST 18.00% | | | | | | 94.50 |
| | **Total** | | | | | | **619.50** |
| 4 | CQR-ULTRA-7-150<br>Lubritek Ultramile 7 Kg<br>Rs.150 | 4821 | 30.06.2021 | 500 | NOS | 1.05 INR/NOS | 525.00 |
| | **Scheduled Delivery Date** 30.06.2021 | | **Delivery Quantity** 500.000 | | | | |
| | IGST 18.00% | | | | | | 94.50 |
| | **Total** | | | | | | **619.50** |
| 5 | CQR-ULTRA-18-200<br>Lubritek Ultramile 18 Kg<br>Rs.200 | 4821 | 30.06.2021 | 300 | NOS | 1.05 INR/NOS | 315.00 |
| | **Scheduled Delivery Date** 30.06.2021 | | **Delivery Quantity** 300.000 | | | | |
| | IGST 18.00% | | | | | | 56.70 |

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| Item | Material/Description | HSN Code | Del. Date | Qty | UOM | Unit Price | Net Amount |
|---|---|---|---|---|---|---|---|
| | **Total** | | | | | | **371.70** |
| | **Grand Total** | | | | | | **INR 15,239.70** |

**Amount in Words:** INR FIFTEEN THOUSAND TWO HUNDRED THIRTY NINE AND SEVENTY PAISE ONLY.

Price : as per last PO price
Delivery : Immediate
Kindly note the below terms & conditions while Dispatching materials to our plants. If fails the same, Vehicle will not be allowed to enter into the plant premises.
Terms & Conditions -
1. Please arrange to send the COA (Certificate of Analysis) and MSDS( Material safety data sheet) along with supply.
2. Please send original signed invoice along with the materials
3. Please Ensure PUC & Fitness Certificate of Vehicle along with Original Driving License is available with Driver
4. Please mention Our Purchase Order no. in every invoices
5. Please mention Our SAP Material Code in Invoice as mentioned in PO
6. Excess supply/material will not be acceptable. No payment will be made for excess supply. Hence, please ensure that the supply should be as per Purchase order Only. Raj Petro reserve the rights to return the excess supply/material to supplier & charges incurred for the same will be debited from supplier bills/invoices as per actual.

Safety, Health & Environment (SHE) Requirements:
1. All the individual Products packs should be labelled with Hazard class.
2. All Individual packing should be intact / no leakages.
3. Vehicle loaded within permitted load by RT.
4. Mandatory documents: Registration Certificate, Insurance, Original Driving License, PUC, TREM Card, Fitness Certificate
5. Vehicle should comply with all CMV Act & Rules.
6. Vehicle should have Material compatible Fire Extinguisher & First Aid box
7. Vehicle should have reverser horn entering to the plant
8. Mandatory PPEs for Driver and Helper and service providers : Safety Shoes & Helmet
9. Vehicle, product & driver will undergo physical inspection at Raj Petro premises, and it should qualify the same.
10. Any breakdown of vehicle in our premises will be taken care by you, with the method agreed by site in charge and with permission.
11. 2/3 Wheeler or any Passenger cars are not to be allowed inside plant premises
12. Vehicle drivers / cleaners on site are not to be allowed to use mobile phones on site
13. Raj Petro reserves the rights to take suitable action against deviations of above conditions.

JOB WORK / SERVICE / CONTRACTORS
1. ESI Registration No to be given before starting work
2. List of employees, with their respective ESI no and contribution history to be submitted.

GENERAL TERMS AND CONDITIONS OF PURCHASE ("GTCoP")

1. SCOPE: These GTCoP shall apply to all purchase of products and services made by Raj Petro Specialities Private Limited ("Buyer"), an affiliate company of Brenntag (Holdings) B.V. These GTCoP, together with any formal agreement that

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may or may not be executed ("Formal Agreement") and purchase orders issued by the Buyer, constitute the entire agreement between the parties concerning the subject matter hereof. The seller of the products and services purchased by the Buyer, and as named in any of the documents to which these GTCoP are attached ("Seller"), is deemed to irrevocably accept the entire GTCoP, upon acceptance of the purchase orders issued by the Buyer. Any terms or conditions of the Seller are not binding on the Buyer even if the order is based upon them, or if the Seller refers to them on forms or in other documents. In case of any conflict between the documents issued by the Seller, the following order of precedence shall prevail (i) Formal Agreement; (ii) GTCoP; (iii) purchase order or equivalent; (iv) unless explicitly stated otherwise therein, any correspondence issued by the Buyer.

2. ORDERS: The Seller may not withdraw its offers or quotations without the prior written consent of the Buyer. The Buyer may withdraw the purchase orders placed by it, before the delivery of the products, by giving notice to the Seller. A purchase order placed by the Buyer shall be deemed to have been accepted by the Seller, unless rejected within three (3) business days of the receipt of the purchase order. Upon acceptance of a purchase order, the Seller shall not refuse delivery of products and services, except in the event of Force Majeure, as stated in clause 10 of these GTCoP. Any document, information, quotations, offers, or written confirmations received by the Buyer from any representative of the Seller shall be deemed to have been sent by an authorized representative of the Seller.

3. PRICE AND PAYMENT TERMS: The price of the products shall be the price stated in the offers or quotations ("Quotation") made by the Seller, provided that such price has been accepted by the Buyer. Upon acceptance of the Quotation by the Buyer, the Seller shall not increase the price of the products or services without prior written consent of the Buyer. The invoice raised by the Seller shall be in the name of Buyer entity that placed the purchase order on the Seller, unless stated otherwise by Buyer in writing, and shall state the net amount payable by the Buyer and give an itemized description of the total amount payable. The Buyer shall not be charged any amount for packaging, labelling, storage, or express handling of the products. The Seller shall pay all taxes, duties, or levies payable in relation to the products purchased by the Buyer.

The time of payment is not of essence. The Buyer shall pay the price of the products as specified in the purchase order placed by the Buyer, provided that the Products are received in (i) a good condition; (ii) in accordance with the required specifications of the Buyer; (iii) in the quantity; (iv) on the date; and (v) at the point of delivery as mentioned in the purchase order; and (vi) are accepted by the Buyer upon inspection. If any part of the invoice is disputed by the Buyer, the Buyer shall have the right to withhold payment of the invoice amount, in part or in whole.

4. GOODS AND SERVICES TAX: The price quoted in the purchase order for supply of goods shall be exclusive of any applicable Goods and Services Tax ("GST"), customs duties, or any other indirect tax as may be imposed by the Government of India from time to time. The Seller shall provide a proper invoice in the form and manner prescribed under GST Invoice Rules, containing all the particulars mentioned therein. Without prejudice to the generality of the foregoing, the Seller shall ensure that correct harmonized system code/ service accounting code (HSN/ SAC) is mentioned on the invoice for all goods / services purchased / procured, irrespective of whether depiction of HSN / SAC on the invoice is mandatory or not. The Seller shall furnish their PAN/GIR, WCT, GSTIN details to the Buyer and mention the same on every invoice, failing which, the Buyer shall not be liable to make any payment against such invoice. In the event that the input tax credit of the GST charged by the Seller is denied by the tax authorities to the Buyer, the Buyer shall be entitled to recover from the Seller, the amount of GST, any interest thereon, and penalty, if any imposed by the tax authorities on the Buyer by way of adjustment from the next invoice.

The Seller shall pass on to Buyer all the benefits of reduction in tax rates, exemptions, concessions, rebate, set off, credits, etc. or introduction of new tax rates exemptions, concessions, rebate, set off, credits etc. pertaining to all taxes, duties, imposts, fees and levies in respect of the supply of the products or performance of obligations, including reduction in the

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procurement price under the contract. This would specifically include reduction of tax rates as a result of statutory changes or judicial rulings. The terms of various discounts and the resulting reduction of tax liability, if any, should be passed on to the Buyer. The Seller shall also adhere to the documentation as prescribed under the GST law. The Seller shall be obliged to issue credit note within the stipulated time limit, and with the particulars as prescribed under the GST law, to the Buyer. As required by any applicable legislation, where identifiable cost savings are realized by virtue of the enactment of the GST law, those cost savings will be reflected in the calculations of the consideration payable under the purchase order, and shall be passed on by the Seller to Buyer.

In the event that the compliance rating prescribed under the GST Act, 2017 read with GST Rules, 2017 of Seller falls below prescribed level for any reason whatsoever, this GTCoS shall be liable to be terminated with immediate effect, and Seller shall be liable to pay such damages as may be reasonably estimated by Buyer. Tax Deducted at Source (TDS) under both, the Income Tax Act, 1961 and the GST Act, if applicable, shall be deducted by the Buyer at the time of payment, as per the government regulations. And TDS certificates will be issued to the Seller for the amount deducted. The Seller agrees that it is eligible to receive payment only after the correct details of supply are uploaded by it in Form GSTR-1, and this information is subsequently reflected in Form GSTR-2A of the Buyer, pending which, the Buyer may withhold payments of the Seller. Without prejudice to the above, if the Seller does not deposit the GST charged on the invoice issued to Buyer, or such GST charged on the invoice and paid by Buyer is not reflected in either the GSTR-2A available on the common GST portal as eligible input tax credit, this GTCoP shall be liable to be terminated with immediate effect and Seller shall be liable to pay such damages as may be reasonably estimated by Buyer.

In the event that appropriate reporting is not completed by the Seller in Form GSTR-1, the Buyer will be eligible to recover from the Seller, all costs (including interest costs) incurred by it on account of reversal of input tax credit in terms of Section 16 of the Central Goods and Services Tax Act, 2017 ("CGST Act"). The Seller hereby undertakes that it will make timely payments of all taxes, duties and levies imposed by Tax Authority, and be responsible for filing of all necessary tax returns and undertake all necessary compliances in accordance with applicable statutory requirements.

5. DELIVERY & INSPECTION: Time is of essence in every order placed by the Buyer. In the event that the Seller fails to deliver the products on the date agreed between the parties, or if the products delivered are not in accordance with the specifications required by the Buyer, the Buyer may (i) refuse to accept the products at the time when delivery is attempted by the Seller; or (ii) procure similar products from an alternate supplier and charge the Seller for any difference in the cost incurred by the Buyer; and (iii) charge the Seller for all losses (including direct and indirect losses), costs, damages, attorneys' fees, and expenses incurred by or arising out of the Seller's default.

The products and services rendered by the Seller are subject to inspection and approval at the Buyer's designated destination. In the event that the products or service do not conform to the instructions, specifications, drawings or data provided by the Buyer, or the warranties (express or implied) provided by the Seller, the Buyer may, at its discretion, (i) reject the delivery of the products and require the Seller to re-supply conforming products; (ii) require the Seller to rectify the products so that they are in conformity; or (iii) procure similar products from an alternate source. All costs in relation to the return or rectification of the rejected products, including but not limited to costs relating to re-supply, disposal, manpower, and shipment, shall be borne by the Seller. These rights of the Buyer apply mutatis mutandis for all products and services, wherein non-conformities could not have been discovered at the time of delivery, without any limitation as to time. It is clarified that payment for the products delivered or the services performed shall not constitute acceptance of the products or waiver of the Buyer's rights to refuse and/or reject the products at any time.

6. RISK AND TITLE: Risk in the products shall pass to the Buyer when the products are offloaded on delivery and are accepted by the Buyer after inspection. Title in the products shall pass to the Buyer when the products are accepted by the Buyer after inspection, or upon payment of the price for the products, whichever is earlier.

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7. WARRANTY AND LIABILITY: The Seller warrants that (i) the products delivered hereunder are of good quality, free of material and legal defects and are fit for the purpose for which they are purchased; (ii) the products conform to the specifications, drawings, samples or other descriptions furnished by Buyer; (iii) the products comply with all standards, codes and applicable laws in force; (iii) the Seller shall convey good and marketable title to the products; (iv) the warnings provided by the Seller are sufficient and accurate to inform those who come in contact with the product, of the safety requirements and the hazards associated with the product; (iv) all information provided by the Seller in relation to the products is true and accurate in all material respects; (v) the Seller shall maintain the GST compliance ratings as prescribed by the Government of India. The Seller's inclusion of express warranties and representations are not deemed to exclude any warranties that may be implied or expressly set forth in law or fact. The Seller further warrants that services performed shall conform to Buyer's specifications and shall be performed in a skilled and workmanlike manner. This warranty shall survive any inspection, delivery or acceptance of the products or services, or payment for the same by Buyer.

8. INTELLECTUAL PROPERTY: The Seller warrants that the products do not violate the intellectual property rights of any third party. The Seller shall, at its own expense, either procure the Buyer's right to continue using the products, or modify or replace the infringing part of the products so as to avoid the alleged infringement, provided that the products continue to conform to the specifications supplied by the Buyer.

The Buyer shall have title to all drawings, specifications and other documents supplied or prepared by the Buyer in connection with the furnishing of products or services hereunder. The Seller shall hold all such information supplied by the Buyer in confidence and shall use the same only to the extent necessary for execution of the purchase orders placed by the Buyer. The Seller shall take all necessary measures to protect the intellectual property rights of the Buyer from being infringed by any person under its authority, direction, or control, or by any third party to whom information containing the intellectual property rights of the Buyer is disclosed. The Seller shall promptly return all such specifications, drawings and data, and any copies thereof, in whichever form maintained, to the Buyer after the supply of the products.

8. HEALTH RISK AND SAFETY: The Seller warrants that the products and services sold hereunder will comply with all applicable laws and regulations (including, but not limited to, safety and health laws, environmental laws, and laws requiring disclosure of hazardous materials) relating to the manufacture, sale, delivery and/or transportation (including labeling and packaging requirements) of the products. The Seller shall provide the Buyer with all information required to reasonably assist the Buyer and all persons engaged by the Buyer, in safe handling and use of the products sold hereunder and in complying with any reporting requirements. The Seller shall indemnify and hold harmless the Buyer, its affiliates, and their officers, directors, employees and agents from any and all claims, losses (including direct and indirect losses), costs, damages, attorneys' fees, and expenses incurred by the Buyer arising out of products or services provided by the Seller which are not in compliance with these requirements.

The Seller shall notify the Buyer in writing if the Seller has any reason to believe that there is any defect in the products supplied that would render the products unsafe to any purchaser or user of such products, or exposes the consumer of such products to any risk of death, injury, or damage to property. The Seller shall, at its own cost and expense, cooperate with the Buyer in taking all remedial measures to minimize the impact of any defect, recall the defective products already sold by the Buyer, collect and dispose of such products, and comply with any other reasonable directions of the Buyer in relation to such defective products.

9. INDEMNITY: The Seller shall indemnify and hold harmless the Buyer, its affiliates, and their officers, directors, employees and agents from any and all claims, losses (including direct and indirect losses), costs, damages, attorneys' fees, and expenses incurred by the Buyer arising out of (i) modification or cancellation of any purchase order that has been

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accepted by the Seller; (ii) delivery of products that do not conform to the instructions, specifications, drawings, data or the warranties (express or implied) given by the Seller; (iii) breach of the warranties given by the Seller, whether express or implied; (iv) actual or alleged infringement of any patent, copyright, trademark, license or similar rights of a third party, in relation to the products furnished hereunder; (v) products or services provided by the Seller which are not in compliance with the health, safety and environmental requirements, and which renders the products defective or unsafe; (vi) provision of inaccurate or incomplete information by the Seller relating to the products or services; and (vii) any delay in the delivery of the products for reasons not attributable to the Buyer.

10. FORCE MAJEURE: Neither party shall be liable for breach of its obligations hereunder, by reason of any delay in performance or the non-performance of any of its obligations to the extent that the delay or non-performance is due to any unforeseeable causes beyond the reasonable control of that party, including but not limited to (i) compliance with any action, order, direction, request or control of any governmental authority or person purporting to act therefore; and (ii) interruption, unavailability or inadequacy of performance of the agreement for any reason, including pandemics, epidemics, wars, hostilities, public disorders, acts of terrorism or terrorist activity or threat thereof, acts of enemies, sabotage, including diminishment or failure of power, telecommunication or data systems or networks, embargoes, strikes, work stoppages, lockouts, labour or employment difficulties, fires, floods, Acts of God, accidents or breakdowns, weather conditions, inability to obtain materials, inability to procure products from third parties for any reason, inability to procure transport equipment, or any other causes whether or not of the same class or kind as those specifically named, which are not within the control of the party affected and which, by the exercise of reasonable diligence, said party is unable to prevent or provide against. For the avoidance of doubt, mere increase in the cost of performance of this Agreement by the Seller pertaining to Force Majeure shall not entitle the Seller to claim protection under this clause. The Seller shall notify the Buyer in writing within seven (7) business days from the date on which the Seller becomes aware of the Force Majeure event. Such notice must include sufficient details of the Force Majeure event and an explanation on why such event is beyond the control of the Seller, failing which, the Seller shall not be entitled to rely on such alleged Force Majeure event.

11. TERMINATION: The Buyer has the right to terminate these GTCoP in whole or in part at any time and for any reason, by written notice to the Seller. In the event of termination, the Seller may claim only out-of-pocket expenses. Notwithstanding the foregoing, if the Buyer terminates these GTCoP for any breach of the GTCoP committed by the Seller, the Buyer shall not be liable to make any payments to the Seller. Any payments to be made to the Seller upon termination shall be subject to the Buyer's rights of deductions and set-off for damages incurred to the Buyer arising out of or in relation to the breach of the GTCoP by the Seller. The remedy of termination without prejudice to any other rights available to the Buyer under contract or law.

Without limiting any provisions contained in these GTCoP, the Buyer shall have the right to cancel any purchase order placed by it and accepted by the Seller, at any time before delivery of the products or performance of the services, without incurring any liability in respect thereof, in the event of any breaches or suspected breaches of these GTCoP by the Seller.

12. ASSIGNMENT: The Seller shall not assign its rights, benefits or obligations under this agreement without the prior written consent of the Buyer. Nothing contained herein prevents the Buyer from purchasing the products or services through its parent, affiliates, subsidiary, or sister entities, which may act in their own name.

13. RETURN OF CONTAINERS: Unless otherwise agreed between the parties, the Buyer shall not be responsible to return the packaging materials to the Seller and all packaging materials shall be disposed of by the Seller at its own cost. In case the delivery is made in returnable containers/drums, the Seller shall, at its own expense and risk, arrange for the storage and return of the aforesaid containers/drums. The Buyer, shall at no time, bear any risk or cost in relation to any returnable containers /drums.

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14. DISPUTES & JURISDICTION: The parties shall use their best efforts to consult and negotiate with each other to resolve any dispute arising out of or in connection with these GTCoP. If a difference or dispute (together, "Dispute") between the parties arises in connection with the subject matter of this GTCoP, then either party shall send a written notice of Dispute (and marked as such) adequately identifying and providing details of the Dispute ("Notice of Dispute"). Within thirty (30) days after the date of the Notice of Dispute and provided that it is received by all parties, the parties shall confer at least once to resolve the Dispute or to agree on methods of doing so. If a Notice of Dispute is sent by e-mail, it must be in a letter format attached to the e-mail. A Notice of Dispute sent by e-mail is deemed received by the intended recipient if the sender receives a message from the intended recipient's information system confirming delivery of the e-mail. In the event that the parties are unable to resolve their Disputes amicably within thirty (30) days from the date of receipt of Notice of Dispute by its intended recipient, they agree to submit to the exclusive jurisdiction of the courts in the country (or State, such as but not limited to, the case of Australia, India, China) of incorporation of the Buyer entity in whose name the invoice is raised in accordance with clause 3 of these GTCoP ("Relevant Buyer Country"). Any dispute or claim arising out of or in connection with these GTCoP shall be governed by the laws of the Relevant Buyer Country, without regard to its conflict of laws rules or principles. The Vienna Convention on the International Sale of Goods is hereby specifically excluded.

15. SEVERABILITY: If any provision of these GTCoP is held by any competent authority to be invalid or unenforceable in whole or in part, the validity of the other provisions of these GTCoP and the remainder of the provisions in question shall not be affected thereby.

16. WAIVER: The Buyer's waiver of any breach, or failure to enforce any of the terms and conditions of this contract, at any time, shall not in any way affect, limit or waive the Buyer's right thereafter to enforce and compel strict compliance with every term and condition hereof.

17. MISCELLANEOUS: (i) The headings in these GTCoP are for convenience only and shall not affect their interpretation. (ii) The English version of the GTCoP shall prevail in the event of conflict with the Buyer's GTCoP in other language. (iii) Any modifications of these GTCoP shall not be binding except where in writing and signed by both the parties. (iv) The Seller shall keep all information deemed confidential (whether or not marked as such) by the Buyer, and supplied to it by the Buyer (including, in particular, information regarding pricing, financial information, market information, customer data, manufacturing and technical information or know-how) confidential.

18. ANTI-BRIBERY AND CORRUPTION: Each party undertakes to refrain from (i) offering, promising or giving intentionally, and (ii) attempting and conspiring to offer, promise or give, any undue pecuniary or other advantage, whether directly or through intermediaries, to a public official, for that official or for a third party, such that the official acts or refrains from acting in relation to the performance of official duties, in order to obtain or retain business or other improper advantage in the conduct of its domestic and/ or international business. The Seller shall fully comply with all applicable national, regional, provincial, state, municipal or local laws and regulations, including but not limited to the Prevention of Corruption Act, 1988, United States Foreign Corrupt Practices Act of 1977, the United Kingdom Bribery Act 2010, the United Nations Convention Against Corruption, and all other laws in relation to the fight against corruption, bribery, money laundering, terrorism and boycotts that are applicable, and as may be amended from time to time ("Anti-Corruption Laws"). Without limiting the foregoing, the Buyer represents and warrants that, in connection with these GTCoP or the business resulting therefrom, neither it nor its affiliates have made, offered or authorized or will make, offer or authorize any payment, gift, promise or other advantage, whether directly or through any other person or entity, to or for the use or benefit of any government official or any person, where such payment, gift, promise or other advantage would (i) comprise a facilitation payment; and/ or (ii) violate the Anti-Corruption Laws applicable to the Buyer.

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19. COMPLIANCE WITH LAWS: The Seller shall at all times conduct its business in all respects in accordance with all applicable laws and regulations of the Relevant Buyer Country and any other jurisdictions in which the Buyer conducts business or which is applicable to the Buyer and/ or its business. Further, the Seller must obtain all licenses, permissions, consents and other approvals required to perform its obligations under these GTCoS.

**GST Terms and conditions :**

1.GST implementation may trigger various tax savings to the supplier on account of reduction of tax rate, increased tax credit (various administrative expenses, CST credit etc.) subsuming of existing indirect taxes. As per the Anti-Profiteering Provision, the vendor is required to pass benefit on account of increased tax credit and reduction in tax rate.

2.The Supplier shall ensure and take all appropriate steps on proactive basis to ensure that all benefits accruing on account of GST implementation are properly availed and subsequently passed on the Company. The Company will not be responsible for guiding and advising to the supplier and it will be the sole responsibility of the Supplier to ensure and take all steps on proactive basis.

3.The Vendor shall take due care and attention and ensure the incremental taxes, if any, are minimal. Furthermore, if vendor has not taken proper steps to avail the respective benefits available under the GST regime, the Company shall intimate the same and the Company will have a right to retain the respective amount of benefits from the amount due to the supplier if any.

4.The Vendor shall ensure that GST charged by it on supply of goods and services is properly deposited in government treasury account and proper returns & other compliances required under the GST law is undertaken before the due date. In case, should there by any delay in the above compliances, resulting in any adverse implications on the Company, the Company shall be entitled to recover the same along with the interest, penalty and administrative cost incurred by it.

5.The incremental taxes on account of GST will only be compensated, if the proposed implication is discussed with the Company and agreed prior to one month from the date of implementation of GST in India and respective actions are properly implemented by the Supplier.

6.The Vendor shall cooperate and provide all the information required for GST implementation as required by the Company. The failure to provide the information resulting any losses to the Company, shall be on account of the Vendor and will be deducted from the consideration payable to the Supplier.

ISO 9001:2015, ISO 14001:2015 & OHSAS 18001:2007 CERTIFIED COMPANY

For Raj Petro Specialites Pvt Ltd

Authorized Signatory